



CHAPTER cix.

An Act to confer further powers upon the Fishguard and Rosslare Railways and Harbours Company for the construction of a railway and other works and the acquisition of lands and to make provision as to a bridge over the River Suir at Waterford to empower the Great Western and Great Southern and Western Railway Companies to guarantee interest on the capital of the Company and for other purposes. A.D. 1903.

[21st July 1903.]

WHEREAS by the Fishguard and Rosslare Railways and Harbours Act 1898 (in this Act referred to as "the Act of 1898") the Fishguard and Rosslare Railways and Harbours Company (in this Act called "the Company") were authorised to construct certain railways therein called respectively Railways Nos. 14 15 16 17 18 19 and 20 and collectively "the Waterford and Rosslare Railways" and it is expedient that the Company should be authorised to abandon the said Railway No. 14 and to construct in lieu thereof the railway and other works in this Act mentioned and that the time now limited for the completion of the Waterford and Rosslare Railways should be extended :

And whereas it is expedient that the Company should be authorised to acquire the lands in this Act mentioned or referred to in that behalf :

And whereas the station of the Great Southern and Western Railway Company (in this Act called "the Great Southern Company") at Waterford into which the Company have running powers is on the opposite side of the River Suir to the city of Waterford and all traffic between the station and the city has to pass over a bridge in respect of which tolls are payable and a new

A.D. 1903. bridge across the river would be of great advantage to the inhabitants of the city as well as to the Company and the Great Southern Company and it is expedient that provision should be made as contained in this Act for enabling the Company to subscribe or contribute moneys towards the construction of such a bridge and for releasing the Company from the obligation imposed by Section 49 of the Fishguard and Rosslare Railways and Harbours Act 1900 (in this Act referred to as "the Act of 1900") or otherwise with respect to a footway on the railway bridge which would be of no public value:

And whereas by section 70 of the Fishguard and Rosslare Railways and Harbours Act 1899 (in this Act referred to as "the Act of 1899") it was enacted that upon the completion of the works and the inauguration of the through service therein referred to interest at the rate of three pounds ten shillings per centum per annum upon the capital raised by the Company under that Act or any former Act (whether as share or loan capital) should be a first charge on the gross receipts both of the local traffic on the Company's undertaking and of the through traffic of the Great Western Railway Company (in this Act called "the Great Western Company") and the Great Southern Company (in this Act referred to together as "the Two Companies") over the said undertaking by means of the service to be inaugurated as aforesaid:

And whereas it is expedient that the Two Companies should be authorised to guarantee interest on the share and loan capital of the Company at the rate and in the manner provided by this Act and that the agreement between the Two Companies and the Company with regard to the said guarantee as set forth in the Second Schedule to this Act should be confirmed:

And whereas plans and sections showing the lines and levels of the railway and other works by this Act authorised to be constructed and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerks of the peace for the several counties within which such railway and other works will be constructed and such lands are situate and are herein-after respectively referred to as the deposited plans sections and book of reference:

And whereas it is expedient that the Company should be authorised to apply their funds for the purposes of this Act:

And whereas the objects aforesaid cannot be attained without the authority of Parliament : A.D. 1903.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited for all purposes as the Fishguard and Rosslare Railways and Harbours Act 1903. Short title.

2. The following Acts and parts of Acts are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say) :— Incorporation of general Acts.

The Lands Clauses Acts ;

The Railways Clauses Consolidation Act 1845 ; and

Part I. (relating to the construction of a railway) of the Railways Clauses Act 1863 :

With reference to this Act and to the Act of 1899 so far as they respectively relate to lands in Ireland all the provisions of sections 7 8 and 9 of the Railways Clauses Consolidation Act 1845 shall be read and construed as if the expression “clerks of the unions within which such parishes are included in Ireland” or the words “clerks of the unions” (as the case may be) had been used and inserted in such sections in lieu of the expression “the postmasters of the post towns in or nearest to such parishes in Ireland” or in lieu of the word “postmasters” (as the case may be).

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction : Interpretation.

The expression “the railway” means the railway by this Act authorised.

4. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the railway and wharf or embankment and other works herein-after described with all proper or necessary stations sidings approaches bridges roads works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference relating thereto Power to make railway &c.

A.D. 1903. as may be required for those purposes The railway and works herein-before referred to and authorised by this Act are situate in the counties of Waterford and Kilkenny and are—

A railway 1 mile 1 furlong and $1\frac{1}{2}$ chains in length in substitution for Railway No. 14 authorised by the Act of 1898 commencing in the townland of Gracedieu West in the parish of Killoteran in the county of Waterford by a junction with the Company's Waterford and Fermoy branch crossing over the River Suir by means of an opening or swing bridge and terminating in the townland of Newrath in the parish of Kilculliheen in the county of Kilkenny by a junction with the Waterford and Limerick branch of the Great Southern Company and in connexion with the said railway a new cut or channel in the townland of Granny in the parish of Kilmacow in the county of Kilkenny and in the bed and foreshore of the River Suir commencing at a point in the centre of the river or creek known as Kilmacow Pill about 260 yards measured in a south-easterly direction along the centre of the said Pill from the centre of the bridge carrying the public road from Clonmel to Waterford over the said Pill and terminating at a point on the bed or foreshore of the River Suir about 200 yards measured along the bank of the River Suir in a north-westerly direction from the north-western bank of the said Pill at the point where it enters the River Suir :

A wharf or embankment on the bank bed and foreshore of the River Suir commencing at high-water mark at a point 155 yards or thereabouts in a north-westerly direction from the north corner of the goods store at the Waterford Station of the Company's Waterford and Fermoy branch and 96 yards or thereabouts in an easterly direction from the north corner of the engine shed at the said station and terminating at high-water mark at a point about 25 yards in an easterly direction from the east corner of the said goods store and extending into the River Suir at its greatest width at its south-eastern end for a distance of 40 yards or thereabouts from high-water mark.

Railway to
be in sub-
stitution for
railway to be
abandoned.

5. Subject to the provisions of this Act the railway shall for the purposes of maximum rates and charges for merchandise traffic (including perishable merchandise by passenger train) and for all other purposes be deemed to be in substitution for Railway No. 14

authorised by the Act of 1898 and by this Act authorised to be abandoned. A.D. 1903.

6. The Company may make the arch of the bridge for carrying the railway over the road numbered on the deposited plans 17 in the parish of Killoteran any height not less than fourteen feet and of any span not less than fifteen feet. Height and span of bridge.

7. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway which shall be carried over the railway by a bridge or bridges or the immediate approaches thereto except so far as the level of such road highway or approaches is permanently altered. Company not liable to repair surface of road level of which is not permanently altered.

8. And whereas pursuant to the standing orders of both Houses of Parliament and to the Parliamentary Deposits Act 1846 various sums have been deposited with the Accountant-General of the Supreme Court in Ireland in respect of the Act of 1898 the Act of 1899 and the Act of 1900 And whereas the sums now remaining in Court in respect of the said Acts of 1898 1899 and 1900 amount in the aggregate to the sum of thirty-one thousand two hundred and fifty-one pounds eleven shillings and twopence two and three-quarters per centum consolidated stock in this Act referred to as "the existing deposit fund" And whereas Francis Balfour Ormsby is now the depositor in respect of the existing deposit fund within the meaning of the said Acts : Deposit fund not to be repaid except so far as railway is opened.

And whereas pursuant to the standing orders of both Houses of Parliament and to the Parliamentary Deposits Act 1846 a further sum of two thousand one hundred and fifty-three pounds sixteen shillings two and three-quarters per centum consolidated stock of which one thousand five hundred and eighty-five pounds seventeen shillings (in this Act called "the new deposit fund") is equal in value to five per centum on the amount by which the estimate in respect of the railway by this Act authorised exceeds the estimate in respect of the Railway No. 14 authorised by the Act of 1898 for which the railway by this Act authorised is to be substituted and five hundred and sixty-seven pounds nineteen shillings (in this Act called "the wharf deposit fund") is equal in value to four per centum on the amount of the estimate in respect of the wharf and embankment by this Act authorised has been deposited with the Accountant-General of the Supreme Court in Ireland And whereas the said Francis Balfour Ormsby is also the

A.D. 1903. depositor in respect of the said sum of two thousand one hundred and fifty-three pounds sixteen shillings two and three-quarters per centum consolidated stock And whereas the existing deposit fund and the new deposit fund making together thirty-two thousand eight hundred and thirty-seven pounds eight shillings and twopence are in this Act referred to as "the deposit fund" Be it enacted that notwithstanding anything contained in any of the before-mentioned Acts the deposit fund shall not be paid or transferred to or on the application of the said Francis Balfour Ormsby or his executors administrators or assigns all of whom are in this Act referred to as "the depositors" unless the Company shall previous to the expiration of the several periods now limited for the completion of the several railways authorised by the Acts of 1898 1899 and 1900 respectively and within the period limited by this Act for the completion of the railway by this Act authorised open the same respectively for the public conveyance of passengers and if the Company shall make default in so opening the said railways or any part thereof the deposit fund or so much thereof as shall not have been paid or transferred to the depositors shall be applicable and shall be applied in the manner provided by the next following section of this Act Provided that if within such respective periods as aforesaid the Company open any portion of the said railways for the public conveyance of passengers then on the production of a certificate of the Board of Trade specifying the length of the portion of the said railways opened as aforesaid and the portion of the deposit fund which bears to the whole of the deposit fund the same proportion as the length of the portion of railway so opened bears to the entire length of the said railways the High Court shall on the application of the depositors or the majority of them order the portion of the deposit fund specified in the certificate to be paid or transferred to them or as they shall direct and the certificate of the Board of Trade shall be sufficient evidence of the facts therein certified and it shall not be necessary to produce any certificate of this Act having passed anything in the above-mentioned Act to the contrary notwithstanding.

Application
of deposit
fund.

9. If the Company do not previously to the expiration of the respective periods limited for the completion of the said railways complete and open the same for the public conveyance of passengers then and in every such case the deposit fund or so much thereof as shall not have been paid or transferred to the depositors shall be applicable and after due notice in the Dublin Gazette shall be

applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the said railways or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by the Acts of 1898 1899 and 1900 and this Act respectively and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation aforesaid in such manner and in such proportions as to the High Court may seem fit And if no such compensation is payable or if a portion of the deposit fund has been found sufficient to satisfy all just claims in respect of such compensation then the deposit fund or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the undertaking has been abandoned be paid or transferred to such receiver or be applied in the discretion of the Court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the depositors Provided that until the deposit fund has been repaid or retransferred to the depositors or has become otherwise applicable as herein-before mentioned any interest or dividends accruing thereon shall from time to time and as often as the same shall become payable be paid to or on the application of the depositors.

10. On the application of the depositors at any time after the passing of this Act the High Court may order that the wharf deposit fund and the interest and dividends thereon shall be transferred to the depositors or to any other person or persons whom the depositors may appoint in their behalf.

11. Notwithstanding anything contained in the Parliamentary Deposits Act 1846 or in the sections of this Act of which the marginal notes are "Deposit fund not to be repaid except so far as railway is opened" and "Application of deposit fund" the High Court may after due notice to the depositors on the application from time to time of the Company issue a direction to the Accountant-General of the Supreme Court in Ireland to vary the names of the persons named in the warrants or orders referred to in those sections respectively and thereafter the persons named in such direction shall for all purposes be deemed to be the depositors within the meaning of those sections.

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Period for completion of railway.

12. If the railway is not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Company to abandon authorised Railway No.14.

13. The Company shall abandon the construction of Railway No. 14 authorised by the Act of 1898.

Compensation for damage to land by entry &c. for purposes of railway abandoned.

14. The abandonment by the Company under the authority of this Act of the said railway shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Company on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out of the line of railway and shall not prejudice or affect the right of the owner or occupier of any land which may have been temporarily occupied by the Company to receive compensation for such temporary occupation or for any loss damage or injury which may have been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Railways Clauses Consolidation Act 1845 or the Act of 1898.

Compensation for non-completion of contracts in respect of railway abandoned.

15. Where before the passing of this Act any contract has been entered into or notice given by the Company for the purchasing of any land for the purposes of or in relation to the railway by this Act authorised to be abandoned the Company shall be released from all liability to purchase or to complete the purchase of any such lands but notwithstanding full compensation shall be made by the Company to the owners and occupiers or other persons interested in such lands for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to such contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Consolidation Act 1845 as amended by any subsequent Act for determining the amount and application of compensation paid for lands taken under the provisions thereof.

Certain provisions of Act of 1898 extended to new railway.

16. The provisions contained in the following sections of the Act of 1898 (that is to say) :—

Section 10 Provisions as to construction of Railway No. 14 and Railway No. 3 of Wicklow Company ;

Section 11 Powers for Company and Wicklow Company to agree as to execution of authorised works; A.D. 1903

Section 13 For protection of Waterford Commissioners;

Section 16 Warping buoys and moorings to be laid down in Rivers Suir and Barrow;

Section 17 Company may make byelaws as to bridges;

Section 18 Evidence of byelaws as to bridges;

Section 67 Traffic facilities to Company and Wicklow Company;

Section 68 Provisions as to through booking and other matters;

Section 74 For protection of Cork Commissioners;

Section 75 For protection of Waterford Commissioners; so far as they relate to Railway No. 14 authorised by that Act and to the bridge for carrying that railway over the River Suir shall (subject as herein-after provided) extend and apply to the railway by this Act authorised and the bridge for carrying the same over the River Suir as if the same had been expressly re-enacted in this Act with reference thereto Provided always that for the purposes of this Act section 10 of the Act of 1898 shall be read and construed as if the words "a single line of rails" had been substituted therein for the words "a double line of rails" wherever the last-mentioned words occur.

17. For the protection of the commissioners for improving the Port and Harbour of Waterford (in this section called "the commissioners") the following provisions shall notwithstanding anything shown on the deposited plans and sections or in this Act contained apply and have effect unless otherwise agreed upon in writing between the commissioners and the Company (that is to say):—

For protection of Waterford Harbour Commissioners.

(1) The new cut or channel in the townlands of Granny and Newrath in the parishes of Kilmacow and Kilculliheen in the county of Kilkenny and in the bed and foreshore of the River Suir shown on the deposited plans sheet No. 1 shall be constructed on the lines according to the levels and in the manner shown on a plan and section signed by William Friel on behalf of the commissioners and by Sir Benjamin Baker K.C.B. and James Otway on behalf of the Company and the deposited plans shall be and be deemed to be varied and altered accordingly:

(2) The north-eastern limit of deviation of the wharf or embankment on the bank bed and foreshore of the River

A.D. 1908.
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Suir authorised by this Act (in this section called "the wharf") shall not extend into the River Suir further than the river face line of the wharf as shown on the deposited plans :

- (3) The Company shall not commence the construction of the wharf or any temporary or permanent works connected therewith affecting the said river or the banks walls quays or wharves thereof or the approaches thereto until they shall have given to the commissioners two months' notice in writing of their intention to commence the same by leaving such notice at the office of the commissioners with plans and other necessary particulars of the construction of the wharf and works connected therewith and until the commissioners shall have signified their approval of the same in writing and the Company shall comply with and conform to all reasonable directions and regulations of the commissioners in the construction of the wharf and works connected therewith and shall save harmless the commissioners against all and every expense to be occasioned thereby and all such works shall be constructed to the reasonable satisfaction of the engineer or other officer or officers of the commissioners and shall thereafter be maintained and kept in good order and repair by and at the costs charges and expenses in all respects of the Company and all reasonable costs charges and expenses which the commissioners may incur in the preparation or examination of plans or designs and reasonable compensation shall be paid to the commissioners by the Company on demand. The commissioners shall not be liable or be held accountable at any time hereafter for any injury or damage caused to the said works by reason of any ship or vessel striking or fouling the same :
- (4) If the commissioners fail to signify their approval or disapproval or other directions in reference to the said plans and other particulars as aforesaid within thirty days from the receipt thereof or if in the opinion of the Company the commissioners shall unreasonably withhold their assent from such plans and particulars aforesaid or shall require as a condition to their written assent thereto the making of such further works or such extensive alterations of the works proposed as the Company are or may be unwilling to undertake it shall be lawful for the Company or the

commissioners to require the difference between them as to the character and extent of such works or alterations to be decided by arbitration as herein-after provided : A.D. 1903.

- (5) The traffic of Kilmacow Pill shall not at any time be stopped during the construction of the cut or channel and the traffic of the said Pill shall not be interfered with more than may be absolutely necessary for the construction of the cut or channel and the Company shall when and so soon as the permanent works are completed and within fourteen days after notice from the commissioners so to do forthwith proceed to remove any erections or materials for temporary works which may have been placed in the said Pill or in the said river by the Company and on their failing so to do the commissioners may remove the same and charge the Company with the expense of so doing and the Company shall forthwith repay to the commissioners the proper and reasonable expenses incurred by such removal :
- (6) The engineer or other officer of the commissioners with the requisite assistants and workmen shall at all reasonable times have free access to the cut or channel and to the wharf and to the works connected therewith respectively with authority to inspect the same and the workmanship and materials thereof and the state of repair of the same :
- (7) In the event of any rebuilding reconstruction or repair of any of the works mentioned in this section interfering with the navigation of the said river from time to time becoming necessary or desirable no such rebuilding reconstruction or repair shall be commenced until a plan and specification elevations and other necessary and appropriate details of the proposed rebuilding reconstruction or repair shall have been previously submitted to the commissioners and such rebuilding reconstruction and repair shall be carried out to their reasonable satisfaction :
- (8) In case of any difference or dispute arising at any time between the Company and the commissioners or their respective engineers as to anything to be done or not to be done or as to any matters provided for under this section or as to the effect or meaning thereof such difference or dispute shall be referred to settled and determined by an arbitrator to be appointed by the Board of Trade on the application

A.D. 1903.

of the Company and the commissioners or either of them and the decision of such arbitrator (who shall have authority to determine by whom the costs of such reference shall be paid) shall be binding and conclusive.

As to new
cut in River
Suir.

18. The new cut or channel by this Act authorised shall be so constructed as to carry as great a depth of water as the existing channel of Kilmacow Pill between the point of commencement of the new cut or channel and the River Suir.

Works
below high-
water mark
not to be
commenced
without
consent of
Board of
Trade.

19. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Lights on
works dur-
ing con-
struction.

20. The Company shall at or near the works below high-water mark hereby authorised during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve.

If the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Permanent
lights on
works.

21. The Company shall at the outer extremity of their works below high water exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Commissioners of Irish Lights shall from time to time direct.

If the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds. A.D. 1903. —

22. In case of injury to or destruction or decay of the works or any part thereof the Company shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Commissioners of Irish Lights and shall apply to those Commissioners for directions as to the means to be taken and the Company shall be liable to a penalty not exceeding ten pounds for every month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken. Provision against danger to navigation.

23. Subject to the provisions of this Act and in addition to any other lands which the Company are by this Act authorised to acquire the Company may enter upon take and use for the purposes of this Act and for the general purposes of their undertaking the lands following delineated on the deposited plans and described in the deposited book of reference relating thereto (that is to say):— Additional lands.

Certain lands in the townland of Carrignagrohery in the parish of Fermoy and county of Cork (East Riding) lying to the north of and adjoining the Waterford branch of the Company's railway:

Certain lands in the townland of Ballygillane Big in the parish of Kilrane and county of Wexford lying to the south of and adjacent to a proposed new road named Martin Road as newly staked out and fenced:

Certain lands in the county of Wexford in the parish of Rosslare in the townland of Walsheslough lying adjacent to and to the north-east of Rosslare Station on the Company's Wexford and Rosslare Branch Railway:

Certain lands in the parish of Llanwnda in the county of Pembroke lying on and adjoining the north-western side of the Company's railway and between the bridge carrying the public road over that railway at Goodwick Station and the Wynnclyffe Hotel of the Company:

Certain other lands in the said parish lying on the north-western side of the approach road to the said Wynnclyffe Hotel and between Ivy Cottage and the said public road.

24. The powers of this Act for the compulsory purchase of lands shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

A.D. 1903.

Power to owners to grant easements &c.

25. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for any of the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Owners may be required to sell parts only of certain lands and buildings.

26. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the arbitrators jury or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as "the tribunal") shall

in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified as aforesaid can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :

- (4) If the tribunal determine that the portion of the scheduled property specified as aforesaid or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by the owner including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified as aforesaid can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified as aforesaid cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw the said plans sections and estimate and appointment of arbitrator or the said notice to treat (as the case may be) and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified as aforesaid cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the said plans sections and estimates and appointment of arbitrator or the said

A.D. 1903.

notice to treat (as the case may be) shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Extension
of time for
completion
of Water-
ford and
Rosslare
Railways.

27. The time limited by the Act of 1898 for the construction and completion of the Waterford and Rosslare Railways (except such portions thereof as are by the Act of 1900 and this Act authorised to be abandoned) is hereby extended and the powers conferred by the Act of 1898 for the construction of the said railways may be exercised during a period of three years from the twelfth day of August 1903 and sections 40 and 41 of the Act of 1898 shall be read and construed accordingly.

If the said railways be not completed within the said period of three years then on the expiration of that period the powers by the Act of 1898 granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall be then completed.

Restrictions
on displac-
ing persons
of labouring
class.

28.—(1) The Company shall not under the powers of this Act or under the powers of any former Act extended by this Act purchase or acquire in any urban district in Ireland ten or more houses which on the fifteenth day of December next before the passing of this Act or of the former Act by which the purchase or acquisition was originally authorised were or have been since that day or shall hereafter be occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers unless and until the Company—

(A) shall have obtained the approval of the Local Government Board for Ireland to a scheme for providing new dwellings for such number of persons as were residing in such houses on the said fifteenth day of December or for such number

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of persons as the said Local Government Board shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case; and

(B) shall have given security to the satisfaction of the said Local Government Board for the carrying out of the scheme.

(2) The approval of the said Local Government Board to any scheme under this section may be given either absolutely or conditionally and after the said Local Government Board have approved of any such scheme they may from time to time approve either absolutely or conditionally of any modifications in the scheme.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced :

Provided that the said Local Government Board may dispense with the last-mentioned requirement subject to such conditions (if any) as they may see fit.

(4) Any provisions of any scheme under this section or any conditions subject to which the said Local Government Board may have approved of any scheme or of any modifications of any scheme or subject to which they may have dispensed with the above-mentioned requirement shall be enforceable by a writ of Mandamus to be obtained by the said Local Government Board out of the High Court.

(5) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the said Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the court may if it think fit reduce such penalty.

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(6) For the purpose of carrying out any scheme under this section the Company may appropriate any lands for the time being belonging to them or which they have power to acquire and may purchase such further lands as they may require and for the purpose of any such purchase sections 202 203 and 214 of the Public Health (Ireland) Act 1878 shall be incorporated with this Act and shall apply to the purchase of lands by the Company for the purposes of any scheme under this section in the same manner in all respects as if the Company were a sanitary authority within the meaning of the Public Health (Ireland) Act 1878 and the scheme were one of the purposes of that Act.

(7) The Company may on any lands belonging to them or purchased or acquired under this section or any Provisional Order issued in pursuance of this section erect such dwellings for persons of the labouring class as may be necessary for the purpose of any scheme under this section and may sell demise or let or otherwise dispose of such dwellings and any lands purchased or acquired as aforesaid and may apply for the purposes of this section to which capital is properly applicable or any of such purposes any moneys which they may be authorised to raise or apply for the general purposes of their undertaking :

Provided that all lands on which any buildings have been erected or provided by the Company in pursuance of any scheme under this section shall for a period of twenty-five years from the date of the scheme be appropriated for the purpose of such dwellings and every conveyance demise or lease of such lands and buildings shall be endorsed with notice of this enactment :

Provided also that the said Local Government Board may at any time dispense with all or any of the requirements of this sub-section subject to such conditions (if any) as they may see fit.

(8) So much of section 41 of the Public Health (Ireland) Act 1878 as provides that the provisions of that section and of the two preceding sections of the same Act shall not apply to buildings belonging to any railway company and used for the purposes of such railway under any Act of Parliament shall not apply to buildings erected or provided by the Company for the purpose of any scheme under this section.

(9) The said Local Government Board may direct any inquiries to be held which they may deem necessary in relation to any scheme under this section and for giving effect to any of the provisions of this section and the inspectors of the said Local Government Board

shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health (Ireland) Act 1878.

(10) The Company shall pay to the said Local Government Board a sum to be fixed by that Board in respect of the preparation and issue of any Provisional Order in pursuance of this section and any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

(11) Any houses purchased or acquired by the Company for or in connexion with any of the purposes of this Act or of any former Act the powers of which are extended by this Act whether purchased or acquired in exercise of the powers conferred by this Act or otherwise and whether before or after the passing of this Act which may have been occupied by persons of the labouring class within five years before the passing of this Act or of such former Act as the case may be and for which houses no substitutes have been or are directed to be provided by any scheme approved by the said Local Government Board under the powers of any previous Act relating to the Company shall for the purposes of this section be deemed to have been acquired under the powers of this Act and to have been occupied on the fifteenth day of December last by the same number of persons belonging to the labouring class as were occupying the said houses at the date of their acquisition. Provided that if the said Local Government Board are unable to ascertain the number of such persons who were then occupying the said houses the said houses shall be deemed to have been occupied by such number of such persons as in the opinion of the said Local Government Board they might have been sufficient to accommodate.

(12) The Company shall not under the powers of this Act purchase or acquire in any borough or other urban district in Wales and elsewhere than in any borough or urban district any parish ten or more houses which on the fifteenth day of December last were occupied either wholly or partly by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(13) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the

A.D. 1903. — provisions of the last preceding subsection they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

(14) For the purposes of this section the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them The expression "house" means any house or part of a house occupied as a separate dwelling.

Provisions
as to bridge
over River
Suir at
Waterford.

29.—(1) Notwithstanding anything contained in this Act the provisions of section 49 of the Act of 1900 (As to footway over River Suir) shall not apply to the railway by this Act authorised or to the bridge for carrying it over the said river.

(2) If the mayor aldermen and burgesses of the county borough of Waterford acting by the council and the county council of Kilkenny (in this section respectively referred to as "the corporation" and "the county council" and together as "the joint councils") acting jointly in any manner in which they are by law enabled to act jointly or either the corporation or the county council acting separately shall construct a bridge for passenger animal and vehicular traffic connecting both sides of the River Suir the Company may and shall subject to the provisions of this section contribute towards the costs of the construction of the said bridge subject to the same being approved as herein-after mentioned the following sum (that is to say) If the said bridge is constructed on the site of or at a distance of not exceeding fifty feet above the existing toll bridge the sum of fifteen thousand pounds and if the said bridge is constructed at any other site between Bilberry Rock and the said existing toll bridge the sum of ten thousand pounds.

(3) The estimate plans and specifications for and in connexion with the construction of the said bridge shall previous to the commencement thereof be submitted to and approved by the engineers of the Company and failing their approval within three months after the submission of such estimate plans and

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specifications shall be approved by an engineer to be appointed on the application of the joint councils the corporation or the county council or the Company by the Board of Trade whose decision on any matter in dispute shall be final.

(4) The Company shall pay to the joint councils or the corporation or the county council as the case may be the sum to be contributed as aforesaid within one month after the production to the secretary of the Company of the certificate of the engineers of the Company that the same has been completed to their satisfaction or in case of difference between them and the joint councils or the corporation or the county council as the case may be to the satisfaction of an engineer to be appointed by the Board of Trade on the application of the joint councils the corporation or the county council as the case may be. Provided that if the sum contributed is fifteen thousand pounds five thousand pounds thereof shall be paid to the corporation and applied by them in relief of their proportion of the cost of the said new bridge.

(5) The receipt of the treasurer for the time being of the joint councils or the corporation or the county council as the case may be being a banking corporation shall be a complete discharge to the Company for any moneys payable under this section.

(6) Nothing in this section shall confer on the corporation or the county council or the joint councils respectively any powers for the construction of a bridge over the River Suir.

30.—(1) In explanation of and in addition to the provisions contained in section 70 of the Act of 1899 it is hereby declared that the interest at a rate not exceeding three pounds ten shillings per centum per annum upon the capital raised by the Company under the Act of 1899 or any former Act (whether as share or loan capital) shall be a first charge upon the gross receipts both of the local traffic on the Company's undertaking and of the Company's proportion of through traffic and of the through traffic of each of the Two Companies to from or over the said undertaking and in the event of such gross receipts being found insufficient to provide interest at the rate or rates at which such capital respectively may be issued (not exceeding three pounds ten shillings per centum per annum) upon the capital raised by the Company under the Act of 1899 or any former Act of the Company (whether as share or loan capital) the Two Companies shall guarantee and pay in perpetuity to the Company in respect of each half year such a further sum as may be required to enable the Company to pay to

As to guarantee by Two Companies.

A.D. 1903. — the holders of the said capital interest for such half year at the rate or rates aforesaid.

Confirming scheduled agreement. (2) The agreement dated the 14th day of February 1903 and made between the Company of the first part the Great Western Company of the second part and the Great Southern Company of the third part as set forth in the Second Schedule to this Act is hereby confirmed and made binding upon the parties thereto respectively.

As to Post Office telegraphs. **31.** In exercising the running powers and other facilities conferred upon them by section 65 of the Act of 1898 the Company shall not use any telegraphs or telephones used by the Postmaster-General for the service of the Post Office without his consent.

Power to Company to apply corporate funds to purposes of Act. **32.** The Company may apply to the purposes of this Act to which capital is properly applicable any of the moneys which they now have in their hands or which they have power to raise by virtue of any Acts relating to the Company and which may not be required for the purposes to which they are by any such Acts made specially applicable.

Provision as to general Railway Acts. **33.** Nothing in this Act contained shall except as in this Act expressly provided exempt any company named in this Act or the railways of any such company from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised by this Act.

Costs of Act. **34.** All costs charges and expenses of and incident to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULES referred to in the foregoing Act. A.D. 1903.

FIRST SCHEDULE.

DESCRIBING PROPERTIES WHEREOF PARTS ONLY ARE REQUIRED TO BE
TAKEN BY THE COMPANY.

Parish.	Nos. on deposited Plans.	Description of Property.
LANDS AT GOODWICK.		
Llanwnda -	1	Garden and drinking fountain in wall.
	1A	Garden.
	1B	Garden.
	1C	Garden.
	1D	Garden.
	1F	Garden.
	2	Forecourt to house.
	3	Garden.
	3A	Garden.
	4	Side approach to house.
	9	Forecourt and steps to house.
	9A	Forecourt and steps to house.
	10	Forecourt and steps to house.
	11	Approach to cottages and life-saving apparatus house.

SECOND SCHEDULE.

AN AGREEMENT entered into this 14th day of February 1903 between the FISHGUARD AND ROSSLARE RAILWAYS AND HARBOURS COMPANY (herein-after called "the Fishguard Company") of the first part the GREAT WESTERN RAILWAY COMPANY (herein-after called "the Great Western Company") of the second part and the GREAT SOUTHERN AND WESTERN RAILWAY COMPANY (herein-after called "the Great Southern Company") of the third part which two latter Companies are sometimes herein-after referred to as "the Two Companies."

WHEREAS by the Fishguard Company's Act of 1899 an agreement between the Fishguard Company the Great Western Company and the Great Southern Company dated the 27th day of May 1898 and set forth in the Seventh Schedule to that Act so far as the same had not been given effect to by the

A.D. 1903. Company's Act of 1898 or was not given effect to by that Act was confirmed and made binding upon the parties hereto and the said Companies were authorised to enter into and carry into effect agreements with respect to the inauguration of a through service by means of the Fishguard and Rosslare route as described in such Act :

And whereas by the same Act (section 70) and the said agreement it was provided that upon the completion of the works and the inauguration of the through service intended by the Act of 1898 to be provided interest at a rate not exceeding 3*l.* 10*s.* per centum per annum upon the capital raised by the Fishguard Company under the Act of 1899 or any former Act whether as share or loan capital should be a first charge on the gross receipts both of the local traffic on the Fishguard Company's undertaking and of the through traffic of the Two Companies over the said undertaking by means of the service to be inaugurated as aforesaid :

And whereas by the said agreement it is further provided that subject to the payment of interest at the rate aforesaid upon the capital of the Fishguard Company the Companies of the second and third parts shall be at liberty to divide between themselves the remaining proportion of the gross receipts of the Fishguard Company's undertaking in such proportions and with such allowances for working expenses as they may mutually agree or as in case of difference may be settled by arbitration :

And whereas by the said agreement it is also provided that the Great Western Company shall work manage and maintain the portion of the Fishguard Company's undertaking on the English side including the steamboat service between Fishguard and Rosslare and the Great Southern Company shall work manage and maintain the portion of the Fishguard Company's undertaking on the Irish side and any loss incurred on the English side including the steamboat service shall be made good and borne by the Great Western Company and any loss incurred on the Irish side shall be made good and borne by the Great Southern Company :

And whereas in order to facilitate the raising of the capital of the Fishguard Company it has been agreed between the parties hereto that a Bill should be promoted in the session of Parliament of 1903 to empower the Great Western Company and the Great Southern Company to jointly guarantee the interest on the said capital at a rate not exceeding 3½ per centum per annum in addition to the same being a first charge on the gross receipts aforesaid :

And whereas it is expedient that the respective liabilities of the said Companies in connexion with the proposed guarantee should as between themselves be defined and determined :

And whereas this agreement is intended to be supplemental to the said agreement of the 27th May 1898 so scheduled and confirmed as aforesaid :

Now these presents witness and it is hereby mutually agreed and declared by and between the Companies parties hereto as follows :—

1. That while as between the holders of share or loan capital of the Fishguard Company and the Companies parties hereto such holders are and

shall be entitled to a first charge on the gross receipts both of the local traffic of the Fishguard Company's undertaking and of the through traffic of the two Companies over the said undertaking and to the joint guarantee of the Companies parties hereto as by the said Bill provided as between the Companies parties hereto but without in any way affecting the rights of such holders and subject always thereto—

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(a) The Great Western Company shall subject to the payment of a due proportion of the expenses of administration of the Fishguard Company be entitled to the receipts from the portion of the Fishguard undertaking in England including the steamboat service between Fishguard and Rosslare and shall be responsible for the interest due on the proportion of the capital of the Fishguard Company issued to meet expenditure on the portion of the said undertaking in England including the said steamboat service whether raised as share or loan capital and all working and other expenses incurred on that portion and shall indemnify and hold harmless the Companies parties hereto of the first and third parts and their respective undertakings from and against all actions suits claims and demands in respect of any liability whether in regard to capital or revenue for expenditure incurred on the English portion of the said undertaking including the said steamboat service :

(b) The Great Southern Company shall subject to the payment of a due proportion of the expenses of the administration of the Fishguard Company be entitled to the receipts from the traffic on the portion of the Fishguard undertaking in Ireland and shall be responsible for the interest due on the proportion of capital of the Fishguard Company issued to meet expenditure on the portion of the said undertaking in Ireland whether raised as share or loan capital and all working and other expenses incurred on that portion and shall indemnify and hold harmless the Companies parties hereto of the first and second parts and their respective undertakings from and against all actions suits claims and demands in respect of any liability whether in regard to capital or revenue for expenditure incurred on the Irish portion of the said undertaking.

2. Of the interest to be jointly guaranteed as aforesaid the Great Western Company shall pay to the Fishguard Company the proportion due to the capital from time to time issued to meet expenditure of that Company on the portion of the Fishguard Company's undertaking on the English side of the Channel including the steamboat service between Fishguard and Rosslare and the Great Southern Company shall pay to the Fishguard Company the proportion due to the capital of that Company from time to time issued to meet expenditure on the portion of the said undertaking on the Irish side.

3. The Fishguard Company shall if so required by the Great Western Company issue to that Company as soon as they are in a position to do so fully paid-up guaranteed ordinary shares in respect of the whole or of such portion as the Great Western Company may require of the sums already advanced

A.D. 1903. — by the Great Western Company in respect of the Fishguard undertaking on the English side including the steamboat service and also of such further sums as they may be called upon to advance in respect of the same on the English side including the steamboat service up to the time when the Fishguard Company are in a position to issue their capital to the public.

4. The Fishguard Company shall if so required by the Great Southern Company issue to that Company as soon as they are in a position to do so fully paid-up guaranteed ordinary shares in respect of the whole or such portion as the Great Southern Company may require of the sums already advanced by the Great Southern Company in respect of the Fishguard undertaking on the Irish side and also of such further sums as they may be called upon to advance in respect of the same up to the time when the Fishguard Company are in a position to issue their capital to the public.

5. The Companies parties hereto severally undertake the one to the other and others of them to use every effort in their power to secure the completion of the works necessary for the inauguration of the through service provided by the principal agreement and also to establish such service at the earliest possible date.

6. The books and accounts of the Fishguard Company shall be made up so as to show clearly the expenditure on the Irish side as distinct from that on the English side including in the latter the outlay on steamers for the Cross-Channel Service.

7. The Great Western Company shall indemnify and hold harmless the Great Southern and the Fishguard Companies respectively against all losses damages and expenses of every kind occasioned to them by reason of any act default or omission of the Great Western Company their contractors workmen or servants on the English side including the said steamboat service in the exercise of the powers of the Fishguard Company and the Great Southern Company shall indemnify and hold harmless the Great Western and the Fishguard Companies respectively against all losses damages and expenses of every kind occasioned to them by reason of any act default or omission of the Great Southern Company their contractors workmen or servants on the Irish side in the exercise of the powers of the Fishguard Company.

8. In the event of any dispute or difference arising between the Companies parties hereto as to the construction meaning or intent of this agreement or in relation to any matter whatsoever arising out of or consequent on or incidental to this agreement or any of its provisions or as to the transactions under this agreement or as to the fact or extent or breach or non-performance of this agreement or any of its provisions or as to the damages consequent thereon or as to what should be done in consequence of any such breach or non-performance all such questions or differences shall from time to time as often as any such questions or differences shall arise be decided by Lord Balfour of Burleigh whom failing by Lord Robertson whom failing by arbitration in accordance with the provisions of the Railway Companies Arbitration Act 1859.

In witness whereof the Companies parties hereto have caused their respective common seals to be hereunto affixed the day and year first before written. A.D. 1903. —

The common seal of the Fishguard and Rosslare Railways and Harbours Company was hereunto affixed in the presence of

G. J. WHITE LAW
Secretary.



The common seal of the Great Western Railway Company was hereunto affixed in the presence of

G. K. MILLS
Secretary.



The common seal of the Great Southern and Western Railway Company was hereunto affixed in the presence of

FRAS. B. ORMSBY
Secretary.



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